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Plaintiff In Pro Per

SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES
CENTRAL DISTRICT — STANLEY MOSK COURTHOUSE

HALSEY MINOR, Plaintiff, v. SHANNON A. MINOR; JOYCE FLAHERTY; HEATHER FLAHERTY; RAYMOND NUTT; and DOES 1 through 20, inclusive, Defendants.	Case No.: 26STCV25125 **COMPLAINT FOR:** 1. Conversion 2. Fraud — Fraudulent Concealment 3. Fraud — Intentional Misrepresentation 4. Breach of Fiduciary Duty / Constructive Fraud 5. Voidable Transfer (Civ. Code § 3439.04) 6. Civil Liability (Pen. Code § 496(c)) 7. Tort of Domestic Violence (Civ. Code §1708.6) 8. Intentional Infliction of Emotional Distress 9. Aiding and Abetting 10. Breach of Written (Premarital) Agreement 11. Money Had and Received 12. Accounting 13. Computer Data Access and Fraud (Pen. Code § 502) 14. Declaratory Relief (Code Civ. Proc. § 1060) **[UNLIMITED CIVIL — Amount exceeds $35,000]** **DEMAND FOR JURY TRIAL**

Plaintiff HALSEY MINOR alleges:

INTRODUCTION

1. This action seeks the return of Plaintiff's separate property: not less than $1,134,000 in cash removed in five transactions in late 2022 from the account Plaintiff used to hold his funds, together with additional separate-property funds and assets — including college-savings accounts and other holdings titled to or controlled by Defendants — that were

acquired with or are traceable to Plaintiff's separate property and were concealed from him. The core cash movements are documented in bank records. Plaintiff does not presently allege a total figure for the additional property, the amount and identity of which are within Defendants' knowledge and control and are the subject of the accounting sought herein.

2. Beyond the taking, Defendant Shannon Minor concealed the transfers and created the false appearance of destitution, and engaged in two distinct courses of conduct directed at Plaintiff's life that caused him severe emotional distress and serious physical injury, including two separate attempts on his own life from which he survived. Plaintiff is informed and believes that Shannon Minor, the beneficiary of life insurance on Plaintiff's life, acted with the intent that Plaintiff not survive, so that she would retain the concealed property and collect the insurance. During the same period Plaintiff's email accounts were accessed without authorization and communications were deleted.

3. Plaintiff seeks compensatory and punitive damages; three times his actual damages and attorney's fees under Penal Code § 496(c); avoidance of the transfers; a constructive trust and an accounting; and a declaration that the property is his separate property under the parties' premarital agreement. Plaintiff does not seek dissolution, custody, support, division of a community estate, or the modification or set-aside of any family-law order.

PARTIES

4. Plaintiff HALSEY MINOR is an individual who presently resides in Cancún, Mexico.

5. Plaintiff is informed and believes, and thereon alleges, that Defendant SHANNON A. MINOR is an individual residing in Los Angeles County, California, and was married to Plaintiff at all relevant times.

6. Plaintiff is informed and believes, and thereon alleges, that Defendant JOYCE FLAHERTY, the mother of Shannon Minor, is an individual residing in Los Angeles County, California, who jointly held the destination account with Shannon Minor and thereafter received transfers into her own account.

7. Plaintiff is informed and believes, and thereon alleges, that Defendant HEATHER FLAHERTY is the sister of Shannon Minor and a daughter of Joyce Flaherty, is a physician, and resides at 10649 Rochester Avenue, Los Angeles, California 90024, the address to which the concealed account statements described below were routed.

8. Plaintiff is informed and believes, and thereon alleges, that Defendant RAYMOND NUTT is the husband of Heather Flaherty, resides at 10649 Rochester Avenue, Los Angeles, California 90024, and received and maintained the concealed account statements described below at that residence.

9. The true names and capacities of Defendants DOES 1 through 20 are unknown to Plaintiff, who will amend this Complaint to allege them when ascertained (Code Civ. Proc. § 474), including the person or persons who effected the unauthorized computer access alleged below and additional persons or entities holding or receiving Plaintiff's separate property.

10. Plaintiff is informed and believes, and thereon alleges, that in doing the acts alleged against them, Joyce Flaherty, Heather Flaherty, and Raymond Nutt acted with knowledge of and in concert with the wrongful conduct of Shannon Minor as alleged in the specific causes of action below.

JURISDICTION AND VENUE

11. The amount in controversy exceeds $35,000, exclusive of interest and costs; this is an unlimited civil action. Venue is proper in Los Angeles County under Code of Civil

Procedure § 395 because Defendants reside in this County and the acts and obligations alleged arose in this County. Assignment to the Central District (Stanley Mosk Courthouse) is proper under the Los Angeles Superior Court Local Rules and the Civil Case Cover Sheet Addendum.

GENERAL ALLEGATIONS

A. The Premarital Agreement and Plaintiff's Separate Property

12. On or about June 23, 2006, Plaintiff and Shannon Minor executed a written premarital agreement. Each party was represented by independent counsel, and neither party has contested the validity of the agreement.

13. Section 12 of the agreement provides, in relevant part: "Halsey will establish a joint checking account and fund it with his separate property. All funds in the account are and will remain his separate property regardless of how the account is titled. Any monies spent from this account on living expenses of the parties shall be considered a gift…" Section 12 further provides that any non-clothing item costing more than $5,000 remains Plaintiff's separate property absent a writing complying with Family Code § 852.

14. Section 7 provides that Plaintiff's property, and all income, capital gains, growth, proceeds, and compensation derived from it, is Plaintiff's separate property. Section 8 provides that Shannon Minor "relinquishes all right, claim, or interest" in Plaintiff's separate property (§ 8.A); that a change in the form or title of that property does not change its characterization (§ 8.B); and that Plaintiff retains "sole and exclusive management and control" of it (§ 8.E). Under Sections 11, 15, and 22, Plaintiff's separate property can be transmuted only by a writing complying with Family Code § 852 that specifically identifies the asset; commingling, titling, beneficiary designations, oral statements, course of conduct, and joint tax returns do not effect a transmutation. Section 13.B provides that non-clothing

items over $5,000 purchased on a jointly titled card or a card in Plaintiff's name remain his separate property; Section 31 expressly preserves the parties' post-marriage disclosure duties under Family Code §§ 721 and 1100(e). Plaintiff is informed and believes that no writing complying with Family Code § 852 exists as to any of the funds or assets at issue.

15. As used herein, "Covered Separate Property" means all property constituting Plaintiff's separate property under Sections 7, 8, 11, 12, 13.B, 15, and 22 of the premarital agreement, together with all income, proceeds, substitutions, growth, and assets acquired with or traceable to that property, held, titled, controlled, or received by any Defendant, absent a writing complying with Family Code § 852. Covered Separate Property does not include property that Shannon Minor owned as her own separate property under Exhibit A to the premarital agreement, or its traceable proceeds. Plaintiff does not seek reimbursement for any living-expense payment or any expenditure for the children's health, education, or welfare that he knowingly authorized, which the agreement treats as gifts.

16. This action does not concern monies spent on the parties' living expenses. The $1,134,000 was not spent on living expenses from the account but was transferred out of the account and into third-party accounts titled to Defendants, and was thereafter concealed from Plaintiff; the Section 12 gift provision does not reach it.

B. The Deposit and the Five Transfers

17. On or about November 9, 2022, a State of California tax-refund warrant in the amount of $1,135,356.93, payable to Plaintiff, was deposited into the parties' Wells Fargo joint checking account ending 2218, an account held in the names of Plaintiff and Shannon Minor. Under Sections 7 and 12 of the premarital agreement, those funds were Plaintiff's separate property.

18. Between November 15 and December 15, 2022, five online transfers moved $1,134,000 out of account 2218 and into Wells Fargo account ending 0890, an account held by Shannon Minor and Joyce Flaherty on which Plaintiff was not a holder: $5,000 on November 15, 2022; $200,000 and $150,000 (the latter bearing the memo "Loan Repayment") on November 21, 2022; $700,000 on November 23, 2022; and $79,000 on December 15, 2022.

19. Plaintiff did not consent to, authorize, or know of the transfers. Plaintiff is informed and believes that Shannon Minor initiated or directed each transfer.

20. Plaintiff is informed and believes that no loan existed that a $150,000 "Loan Repayment" could repay, and that the memo was a false label applied to disguise the transfer. Plaintiff is further informed and believes that Shannon Minor has, in sworn discovery in the parties' dissolution proceeding, characterized funds moving between herself and her mother as an "advance on [her] inheritance" — a characterization inconsistent with any bona fide debt owed by Plaintiff and with the "Loan Repayment" label.

21. In a second layer of transfers between November 22, 2022 and April 3, 2023, at least $242,000 was moved from account 0890 into an account ending 0115 held by Joyce Flaherty, including transfers of $100,000 and $50,000 on November 22, 2022.

22. On or about February 7, 2023, after account 2218 had been drained of Plaintiff's funds, Shannon Minor closed that account, eliminating the source account and terminating any ability of Plaintiff to trace the funds through it.

C. Concealment, False Impoverishment, and the Concealed Accounts and Assets

23. While Plaintiff's funds sat in accounts she controlled with her mother, Shannon Minor repeatedly represented to Plaintiff that no money remained. On or about March 6, 2023,

she represented in substance that Plaintiff was "broke" and had "none," at a time when account 0890 had held $633,889.57 as of December 31, 2022; Plaintiff is informed and believes that a substantial balance persisted at the time of the representation.

24. After closing account 2218, Shannon Minor sent Plaintiff periodic written communications purporting to state the balance of that closed account, showing rapidly diminishing funds and warning that the children would lack food or housing.

25. Plaintiff's separate property was further diverted into four Vanguard 529 College Savings accounts owned by Shannon Minor, on which the children are beneficiaries. Plaintiff is informed and believes that those accounts were funded with Plaintiff's separate-property funds under Shannon Minor's control; that statements were routed to 10649 Rochester Avenue, the residence of Heather Flaherty and Raymond Nutt, and away from Plaintiff; and that the accounts remained under Shannon Minor's ownership and control, she being able to change the beneficiary and withdraw the funds. Plaintiff did not establish, authorize, knowingly fund, or receive statements for these accounts, and understood the children's grandmother to make annual stock gifts for their benefit. Because these accounts hold securities, their value fluctuates and is to be established according to proof. Section 16 of the premarital agreement, which treats expenditures Plaintiff knowingly made for the children's welfare as gifts, does not reach accounts funded without Plaintiff's knowledge, consent, authorization, or donative intent and retained under Shannon Minor's ownership and control, and in any event governs reimbursement rather than transmutation of ownership, which requires a writing complying with Family Code § 852.

26. Plaintiff is informed and believes, and thereon alleges, that Heather Flaherty and Raymond Nutt each received and maintained the Vanguard statements at their residence over a

period of years knowing that the accounts held the children's college funds, that Shannon Minor did not work and had no independent source of such funds, and that the funds did not originate with her; and that, despite regular contact with Plaintiff over approximately seven years, neither ever disclosed the accounts or statements to him. Plaintiff is informed and believes that this conduct was knowing participation in the concealment of Plaintiff's property from him rather than an innocent receipt of mail. The basis of this belief is the recurring, multi-year routing of the statements to their residence, the substantial balances shown, the identification of Shannon Minor and the children on the statements, Defendants' knowledge of Shannon Minor's lack of income, and the absence of any legitimate reason for the statements to be maintained at their home and withheld from Plaintiff.

27. Plaintiff did not conduct the parties' routine banking or household financial administration. Shannon Minor undertook and exercised exclusive or substantially exclusive practical control over the parties' banking, including receiving or controlling account statements, maintaining or accessing online credentials, initiating or directing transfers, and communicating purported balances to Plaintiff. Plaintiff did not know every financial institution or account being used and lacked the records necessary to verify Shannon Minor's representations.

28. Plaintiff has obtained only a small fraction of the records necessary to determine the disposition of his separate property, and Shannon Minor has not satisfied Plaintiff's requests for production in the dissolution proceeding. Plaintiff is informed and believes, based on the transactions specifically alleged herein and the concealment mechanisms alleged, that additional Covered Separate Property was transferred, retained, used to pay obligations for which Plaintiff was not responsible, or used to acquire property held or

controlled by one or more Defendants. Plaintiff does not presently allege a fixed aggregate amount beyond the documented transfers; the precise amounts, accounts, assets, recipients, and current locations are within Defendants' and third parties' possession and will be established through the accounting and discovery. The transactions specifically identified in this Complaint are known examples and are not alleged to constitute the entire amount of Plaintiff's separate property transferred, concealed, retained, or used to acquire property.

29. Plaintiff is informed and believes, and thereon alleges, that Shannon Minor possesses or controls a Mercedes-Benz vehicle acquired with, or otherwise traceable to, Plaintiff's separate property, or acquired through an account or payment instrument governed by Sections 12 and 13.B of the premarital agreement. Plaintiff did not conduct the parties' banking or vehicle-title and insurance recordkeeping and does not presently possess the documents identifying the vehicle's year, model, vehicle-identification number, title history, purchase price, source of payment, or current value, which are within Shannon Minor's and third parties' possession. Plaintiff executed no writing complying with Family Code § 852 transmuting the vehicle, and seeks a declaration of ownership, return of the vehicle or its value, and tracing relief according to proof.

D. First Course of Conduct Directed at Plaintiff's Life

30. During the period the funds were concealed, Shannon Minor engaged in a sustained course of conduct toward Plaintiff, including repeatedly telling him he was worthless, without money, and without a job; changing the locks and alarm codes of the family home; threatening to send his belongings away; and telling the parties' children and others that he had abandoned them. On at least three occasions, when Plaintiff withdrew to his room and closed the door to remove himself from her, Shannon Minor broke the door in.

31. Believing Shannon Minor's representations that he was financially ruined, and worn down by the course of conduct alleged, Plaintiff formed and communicated an intent to end his life, including a written communication dated June 6, 2023, and a later communication directly asking Shannon Minor to disclose whether any money remained hidden, because he did not wish to die upon a false premise. Shannon Minor never answered and continued to withhold the truth, and communicated to Plaintiff how much time he had left in which to end his life.

32. In or about August 2023, while abroad, Plaintiff drove into a rock wall at high speed in an attempt to take his life and sustained serious physical injuries requiring months of hospitalization and recovery. Plaintiff is informed and believes that had he known his separate property existed and was concealed, he would not have formed or acted on that intent. After the attempt, Shannon Minor, who knew of his critical condition, rendered no assistance and took affirmative steps to discourage his recovery and return, including telling Plaintiff that he would be arrested when he came home.

E. Second Course of Conduct Directed at Plaintiff's Life

33. After learning that Plaintiff had survived and remained critically injured and psychologically vulnerable, Shannon Minor initiated or continued a second and distinct course of conduct directed at Plaintiff's life. She communicated to Plaintiff, in substance, that he had until on or about September 17, 2023 to end his life before a stated life-insurance deadline; she continued to conceal the funds whose existence Plaintiff had directly asked her to disclose; and she left him abroad with approximately $500, without identification, credit cards, or effective access to his financial accounts and electronic information.

34. On or about September 17, 2023, while still believing the false financial picture and in response to the stated deadline, Plaintiff commenced a second attempt to take his life by hanging in his room. The attempt was interrupted when Plaintiff's now-fiancée telephoned him repeatedly over an extended period, causing Plaintiff to stop and step down. No financial disclosure or discovery caused Plaintiff to stop; he remained unaware of the five transfers, the destination accounts, Joyce Flaherty's receipt of the funds, the closure of account 2218, and the Vanguard accounts. Plaintiff alleges this attempt on his personal knowledge; his now-fiancée has knowledge of it.

35. Plaintiff is informed and believes that Shannon Minor acted throughout both courses of conduct with the specific intent that Plaintiff die, or, in the alternative, with conscious and reckless disregard of the probability that her conduct would cause Plaintiff to attempt to take his life, suffer bodily injury, or die, so that she would retain the separate property she had concealed and collect the proceeds of life insurance on Plaintiff's life of which she was the beneficiary. Having by her own intentional conduct created the peril to Plaintiff's life, and by virtue of the parties' relationship, Shannon Minor had a duty to take reasonable steps to summon aid for Plaintiff and deliberately failed and refused to do so.

F. Unauthorized Computer Access and Deletion of Evidence

36. Between approximately August and November 2023, while Plaintiff was hospitalized abroad and sent no email from his account, Plaintiff's Google account was subjected to repeated unauthorized account-recovery requests recorded by Google on September 7, September 9, October 10, and October 21, 2023, each resetting a recovery period, culminating in an unauthorized password change and a foreign device sign-in on November 20, 2023, and the addition of a recovery email during that window.

37. Plaintiff is informed and believes that during this unauthorized access, communications concerning Defendants were deleted from his account, and documents Plaintiff did not author were created and inserted into his files. Plaintiff is presently unable to identify the individual or individuals responsible and asserts the claim against Doe defendants, and will amend after forensic examination and third-party records identify the actor or actors.

G. Delayed Discovery

38. The five transfers. Plaintiff could not, with reasonable diligence, have discovered the transfers earlier. Although account 2218 bore Plaintiff's name, Shannon Minor controlled the parties' mail and the online banking for that account, and Plaintiff had no access to its statements or online records; he therefore could not observe the debits, and Shannon Minor thereafter closed the account. Plaintiff was not a holder of accounts 0890 or 0115 and had no right to their statements, and reasonably relied on Shannon Minor's representations that no money remained, a reliance the parties' confidential relationship made reasonable. Plaintiff first discovered the transfers on or about late March 2025, when his then-counsel obtained the Wells Fargo statements in the dissolution proceeding, and promptly acted upon that discovery.

39. The Vanguard accounts. In or about March 2025, in communications between counsel in the dissolution proceeding, Shannon Minor's counsel referred to "the college funds." Plaintiff immediately informed his counsel that he had never established, authorized, or knowingly funded such accounts and had understood the children's grandmother to make annual stock gifts. Plaintiff's counsel then informed him that Shannon Minor's counsel had stated the funds did not come from the grandmother. This was Plaintiff's first notice that the Vanguard 529 accounts existed and might have been funded with his separate property; no statements or opening documents had ever been provided to him.

40. The computer access. Plaintiff first learned of the unauthorized account-recovery events, password change, and deletions upon regaining access to and examining his account after his hospitalization, and has incurred and will incur expense to verify the extent of the alteration and deletion of his data.

41. Shannon Minor's closure of account 2218, her withholding of records, and the deletion of Plaintiff's communications concealed the facts constituting Plaintiff's claims and prevented their earlier discovery, and estop Defendants from asserting that Plaintiff's claims are untimely.

FIRST CAUSE OF ACTION
CONVERSION
(Against Shannon Minor, Joyce Flaherty, and Does)

42. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

43. Plaintiff owned and was entitled to possess the $1,134,000, a specific and identifiable sum, as his separate property.

44. Defendants wrongfully exercised dominion over that sum: Shannon Minor by initiating or directing the five transfers and closing the account, and Joyce Flaherty by receiving the funds into the account she held with Shannon Minor and thereafter taking at least $242,000 into her own account. Plaintiff did not consent. Plaintiff is informed and believes that Defendants shared a common plan to convert and conceal the funds and committed overt acts in furtherance, rendering each jointly and severally liable.

45. Plaintiff was damaged in an amount not less than $1,134,000, together with such further separate-property sums as are established according to proof, and interest from the dates of

the transfers (Civ. Code §§ 3287, 3336). The conduct was undertaken with fraud, oppression, and malice, entitling Plaintiff to punitive damages (Civ. Code § 3294).

SECOND CAUSE OF ACTION
FRAUD — FRAUDULENT CONCEALMENT
(Against Shannon Minor)

46. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

47. Shannon Minor owed Plaintiff a duty to disclose arising from the parties' confidential marital relationship, the disclosure duties of which the premarital agreement expressly preserved (§ 31; Fam. Code § 721), her exclusive knowledge and control of the accounts, and her active steps to prevent discovery.

48. She concealed material facts — the transfer of $1,134,000, the onward movement of at least $242,000, the closure of account 2218, the true balances, and the concealed accounts and assets — and instead represented that no money remained, intending to prevent Plaintiff from discovering and recovering his property.

49. Plaintiff was unaware of the concealed facts and could not have discovered them through reasonable diligence, and his property was diverted and dissipated while he was kept in ignorance. As a further direct and proximate result of the concealment, Plaintiff — induced to believe he had been left destitute when in truth his separate property existed and was concealed — suffered severe emotional distress and the physical injuries resulting from his two attempts to end his life, which are consequential damages of the concealment. Because Plaintiff did not discover the concealment until on or about late March 2025, this cause of action and these damages are timely (Code Civ. Proc. § 338(d)). The concealment was undertaken with fraud, oppression, and malice (Civ. Code § 3294).

THIRD CAUSE OF ACTION
FRAUD — INTENTIONAL MISREPRESENTATION
(Against Shannon Minor)

50. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

51. Shannon Minor made affirmative representations of fact to Plaintiff, including, on or about March 6, 2023, that Plaintiff was "broke" and had "none," and that the family faced destitution, and, in periodic written communications, statements purporting to reflect the balance of the closed account 2218.

52. The representations were false when made and known by Shannon Minor to be false; she intended Plaintiff to rely on them; Plaintiff reasonably relied to his financial and physical detriment; and Plaintiff was thereby damaged. The representations were made with fraud, oppression, and malice (Civ. Code § 3294).

FOURTH CAUSE OF ACTION
BREACH OF FIDUCIARY DUTY / CONSTRUCTIVE FRAUD
(Against Shannon Minor)

53. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

54. By the parties' marriage and by Section 31 of the premarital agreement, which expressly preserved the disclosure duties of Family Code §§ 721 and 1100(e), Shannon Minor owed Plaintiff the highest duty of good faith and fair dealing, a duty not to take unfair advantage, and a duty to account, in her management of and dealings with Plaintiff's separate property that she managed or controlled.

55. Shannon Minor exercised exclusive or substantially exclusive practical control over the accounts and financial information through which Plaintiff's separate property was held

and moved. She breached her fiduciary duty by transferring the $1,134,000 out of account 2218, diverting Plaintiff's separate property into accounts and holdings titled to herself and others, closing account 2218, misrepresenting that no money remained, concealing the accounts and transactions, and failing and refusing to account to Plaintiff. The concealment and nondisclosure also constitute constructive fraud (Civ. Code § 1573).

56. Because Shannon Minor solely managed and concealed Plaintiff's separate property, the burden rests upon her to account for that property. Plaintiff was damaged according to proof, and the breach was undertaken with fraud, oppression, and malice, entitling Plaintiff to punitive damages (Civ. Code § 3294). Plaintiff seeks damages in a civil action and does not seek any order under the Family Code.

FIFTH CAUSE OF ACTION
VOIDABLE TRANSFER (Civ. Code § 3439.04, in the Alternative)
(Against Shannon Minor, Joyce Flaherty, and Does)

57. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

58. This cause of action is pleaded in the alternative: to the extent any transfer is characterized as a transfer of an asset of Shannon Minor at a time when Plaintiff held a claim against her, the transfers — principally the onward transfers from account 0890 into Joyce Flaherty's account ending 0115 and the funding of the Vanguard accounts — were made with actual intent to hinder, delay, or defraud Plaintiff (Civ. Code § 3439.04(a)(1)).

59. Actual intent is shown by the statutory badges of fraud: the transfers were to insiders; they were concealed; the $150,000 transfer bore a false "Loan Repayment" memo; the transferor retained the benefit of the funds; the source account was closed; and the transfers followed the removal of substantially all of the funds at issue. Joyce Flaherty was a first

transferee of the funds moved to account 0115, and Does are subsequent transferees or persons for whose benefit transfers were made (Civ. Code § 3439.08(b)). This cause of action is brought within four years of each challenged transfer (Civ. Code § 3439.09). Plaintiff seeks avoidance of the transfers and recovery of the property or its value (Civ. Code § 3439.07).

SIXTH CAUSE OF ACTION
CIVIL LIABILITY UNDER PENAL CODE § 496(c)
(Against Shannon Minor, Joyce Flaherty, and Does)

60. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

61. The $1,134,000 was obtained and withheld from Plaintiff in a manner constituting theft within the meaning of Penal Code § 496(a), by embezzlement or theft by trick: Shannon Minor, entrusted with access to the joint account holding Plaintiff's separate property, fraudulently appropriated those funds, with the intent to deprive Plaintiff of the property permanently, to her own use and that of Joyce Flaherty. Defendants received, concealed, or withheld the property, or aided in doing so, knowing that it had been so obtained.

62. Under Penal Code § 496(c), Plaintiff is entitled to recover three times the amount of his actual damages, together with costs of suit and reasonable attorney's fees.

SEVENTH CAUSE OF ACTION
TORT OF DOMESTIC VIOLENCE (Civ. Code § 1708.6, in the Alternative)
(Against Shannon Minor)

63. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

64. This cause of action is pleaded in the alternative. Through the two courses of conduct directed at Plaintiff's life alleged above, Shannon Minor intentionally or recklessly caused

or attempted to cause bodily injury to Plaintiff within the meaning of Penal Code § 13700(a), and her conduct was a substantial factor in causing the serious physical injuries Plaintiff sustained in his two attempts on his own life.

65. Shannon Minor's conduct constituted a continuous course of abusive conduct toward Plaintiff, her spouse. This cause of action is timely under Code of Civil Procedure § 340.15, which runs from the later of Shannon Minor's last act of abuse — including her communication, on or about September 17, 2023, that Plaintiff had until a stated life-insurance deadline to end his life, and her contemporaneous conduct in leaving him abroad without resources — or Plaintiff's discovery that his injuries resulted from that abuse.

66. Plaintiff is entitled to general, special, and punitive damages, injunctive relief, costs, and reasonable attorney's fees (Civ. Code § 1708.6).

EIGHTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS (in the Alternative)
(Against Shannon Minor)

67. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

68. This cause of action is pleaded in the alternative. Shannon Minor's conduct — concealing Plaintiff's funds while representing that he was destitute, creating false statements of a closed account, isolating him, turning the children against him, and, while he was in crisis and after both attempts on his life, continuing the course of conduct, refusing aid, and communicating deadlines by which he should end his life — was extreme and outrageous, and was undertaken with the intent to cause, or in reckless disregard of the probability of causing, severe emotional distress.

69. Plaintiff suffered severe emotional distress and consequent physical injury, proximately caused by the conduct. Because the outrageous character of the conduct — Shannon Minor's concealment of Plaintiff's property — was concealed from Plaintiff and not discovered until on or about late March 2025, and because Shannon Minor's continuing concealment and Plaintiff's incapacity and residence abroad prevented earlier suit, Defendants are estopped from asserting untimeliness, and the tort is a continuing one. Punitive damages are sought (Civ. Code § 3294).

NINTH CAUSE OF ACTION
AIDING AND ABETTING
(Against Joyce Flaherty, Heather Flaherty, Raymond Nutt, and Does)

70. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

71. Joyce Flaherty, Heather Flaherty, and Raymond Nutt each knew that Shannon Minor's conduct constituted a wrong against Plaintiff and gave substantial assistance to that wrong: Joyce Flaherty by receiving and holding the funds, and Heather Flaherty and Raymond Nutt each by receiving and maintaining the diverted Vanguard statements at their residence over a period of years, thereby keeping the accounts hidden from Plaintiff, with knowledge — pleaded on information and belief and on the basis stated above — that the accounts were Plaintiff's separate property and were being concealed from him.

TENTH CAUSE OF ACTION
BREACH OF WRITTEN (PREMARITAL) AGREEMENT
(Against Shannon Minor)

72. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

73. The premarital agreement is a valid and enforceable written contract. Under Sections 7, 8, and 12, Plaintiff's separate property, and funds in the account, remain his regardless of title, and Shannon Minor waived all claim to that property, agreed that a change in form or title would not change its character, and agreed that Plaintiff retains sole and exclusive control.

74. Shannon Minor breached the agreement by removing the $1,134,000 from the account, diverting Plaintiff's separate property into accounts and holdings titled to herself and others (including the Vanguard 529 accounts), asserting dominion over property she had waived, and failing to restore Plaintiff's control — all without any writing complying with Family Code § 852. Plaintiff performed all conditions required of him and was damaged in an amount not less than $1,134,000, plus the value of additional separate property according to proof. Under Section 26.B of the agreement, Plaintiff is entitled to recover his reasonable attorney's fees as the prevailing party.

ELEVENTH CAUSE OF ACTION
MONEY HAD AND RECEIVED
(Against Shannon Minor and Joyce Flaherty)

75. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

76. Defendants received money — not less than $1,134,000, and as to Joyce Flaherty not less than $242,000 — that was Plaintiff's separate property under the parties' written premarital agreement and that in equity and good conscience belonged to and should be returned to Plaintiff, together with interest. This cause of action arises from the obligation created by that written agreement.

TWELFTH CAUSE OF ACTION
ACCOUNTING
(Against Shannon Minor and Joyce Flaherty)

77. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

78. Plaintiff did not conduct the parties' banking or maintain the books and records concerning the accounts through which his separate property was received, held, transferred, or used. Shannon Minor undertook and exercised practical control over those financial functions and possessed or controlled records unavailable to Plaintiff; Joyce Flaherty jointly held the destination account and received and controlled identified portions of Plaintiff's separate property. A relationship exists between Plaintiff and these Defendants that requires an accounting.

79. The known transactions — the five transfers totaling $1,134,000, the onward transfers into Joyce Flaherty's account, and the four Vanguard 529 accounts — establish that a substantial balance and property are due to Plaintiff. This cause of action does not seek the documented $1,134,000, which is recovered under the other causes of action; it seeks an accounting of the additional Covered Separate Property and proceeds whose amount and disposition cannot presently be ascertained because the account statements, transfer records, and related documents are within Defendants' and third parties' possession.

80. Plaintiff seeks a complete accounting of all Covered Separate Property received, held, managed, transferred, or used to acquire property by Shannon Minor and Joyce Flaherty, together with all proceeds, substitutions, and present holdings, followed by judgment for the money and property shown to be due.

THIRTEENTH CAUSE OF ACTION
COMPUTER DATA ACCESS AND FRAUD (Pen. Code § 502)
(Against Does)

81. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

82. Doe defendants, without permission, knowingly accessed and used Plaintiff's computer accounts and data, including his Google and email accounts, and took, copied, altered, added to, or deleted data therein, as evidenced by the unauthorized account-recovery requests, the password change and foreign device sign-in, the addition of a recovery credential, the deletion of communications, and the insertion of documents Plaintiff did not author (Pen. Code § 502(c)).

83. Plaintiff suffered damage and loss, including the cost of verifying the extent of the alteration and deletion of his data, and is entitled to compensatory damages and, for a willful violation, punitive or exemplary damages and reasonable attorney's fees (Pen. Code § 502(e)). Plaintiff will amend to name the responsible actor or actors when ascertained.

FOURTEENTH CAUSE OF ACTION
DECLARATORY RELIEF (Code Civ. Proc. § 1060)
(Against All Defendants)

84. Plaintiff realleges and incorporates by reference each preceding paragraph as though fully set forth herein.

85. An actual controversy has arisen between Plaintiff and Defendants concerning whether the funds and assets at issue — the $1,134,000 and its proceeds, the accounts holding it, the four Vanguard 529 accounts, and other Covered Separate Property — are Plaintiff's separate property under the premarital agreement. Plaintiff contends they are and remain his separate property regardless of how they are titled and absent any writing complying

with Family Code § 852. Plaintiff is informed and believes that Defendants contend otherwise.

86. Plaintiff seeks a judicial declaration that the funds, accounts, and assets constituting Covered Separate Property are Plaintiff's separate property; that no transmutation complying with Family Code § 852 has occurred; and that title held in the name of any Defendant does not defeat Plaintiff's ownership.

RELATION TO PENDING DISSOLUTION PROCEEDING

87. A marital dissolution proceeding between Plaintiff and Shannon Minor is pending in this Court, which Plaintiff discloses for candor and completeness. Plaintiff does not contend that the two matters are related within the meaning of California Rules of Court, rule 3.300. This action seeks none of the relief that lies within the dissolution: it does not seek dissolution, custody, visitation, support, division of a community estate, or the modification, set-aside, or collateral review of any family-law order or judgment. It asserts independent civil causes of action for money damages, treble and punitive damages, and a constructive trust, and it demands a jury — relief and a jury right not available in the dissolution proceeding. Three of the four Defendants — Joyce Flaherty, Heather Flaherty, and Raymond Nutt — are not parties to the dissolution and are not subject to its jurisdiction. No order or judgment in the dissolution has adjudicated the ownership of the five transfers, their traceable proceeds, or the Vanguard accounts, or any of the personal-injury, statutory, computer-access, or third-party claims asserted here; the only request that placed the ownership of Plaintiff's separate property before the family court — Plaintiff's request for interim release of funds — was denied without any adjudication of the character or ownership of that property. Because the parties, claims, remedies, and jury right in this action differ from those in the dissolution, and because the sole potential

overlap was left unadjudicated by the family court, this action is properly heard as an independent civil action.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants, and each of them as alleged, as follows:

A. Compensatory damages of not less than $1,134,000, plus additional separate-property funds and the value of separate-property assets according to proof, together with interest (Civ. Code §§ 3287, 3336);

B. Special damages, including medical and recovery costs and consequential economic losses, according to proof;

C. General damages for physical injury and emotional distress, according to proof;

D. Three times Plaintiff's actual damages, costs of suit, and reasonable attorney's fees (Pen. Code § 496(c));

E. General, special, and punitive damages, injunctive relief, costs, and reasonable attorney's fees (Civ. Code § 1708.6);

F. Compensatory and exemplary damages and reasonable attorney's fees for computer data access and fraud (Pen. Code § 502(e));

G. Avoidance of the voidable transfers and recovery of the property or its value (Civ. Code § 3439.07);

H. A constructive trust over all funds, accounts, and assets constituting Covered Separate Property and their traceable proceeds and appreciation, according to proof (Civ. Code §§ 2223, 2224);

I. A full accounting of all Covered Separate Property received, held, managed, transferred, or received by Shannon Minor and Joyce Flaherty, and their proceeds and present holdings, and judgment for the money and property shown to be due;

J. Reasonable attorney's fees under Section 26.B of the premarital agreement on the cause of action for breach of that agreement;

K. A declaration that the funds, accounts, and assets constituting Covered Separate Property are Plaintiff's separate property and that no transmutation complying with Family Code § 852 has occurred (Code Civ. Proc. § 1060);

L. Punitive and exemplary damages, on the causes of action for conversion, fraud, breach of fiduciary duty, and, in the alternative, the tort of domestic violence and intentional infliction of emotional distress, against Shannon Minor (and against Joyce Flaherty to the extent knowing receipt is proven) (Civ. Code § 3294);

M. Costs of suit; and

N. Such other and further relief as the Court deems just and proper.

Electronic signature Pursuant
to Cal. Rules of Court, §2.257

Dated: 08/06/2026

Halsey Minor
Halsey Minor (Aug 6, 2026 16:27:19 CDT)

HALSEY MINOR,
Plaintiff In Pro Per

DEMAND FOR JURY TRIAL

Plaintiff hereby demands a trial by jury on all legal claims and factual issues so triable. The equitable remedies requested are supplemental or alternative and shall not constitute a waiver of Plaintiff's jury right.